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Environmental Governance in India: Political Accountability, Regulatory Enforcement and Sustainable Development

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Abstract: *India's environmental governance rests on an unusual combination: an expansive constitutional commitment to a healthy environment, a dense statutory framework, and a judiciary that has at times acted as the principal environmental regulator. Yet air, water and land indicators remain among the world's poorest, and enforcement outcomes lag far behind legislative ambition. This paper argues that the gap between law and outcome is best explained by weak political accountability and under-resourced, captured or discretion-heavy regulatory institutions, and that recent reforms privilege speed of clearance over answerability. Using a doctrinal and analytical method, it examines the constitutional foundations, the institutional design of regulators and the National Green Tribunal (NGT), the role of the Supreme Court, and the tension between development and ecological limits. It concludes with reforms aimed at statutory independence of regulators, transparent and participatory decision-making, credible penalties, and a constitutionally grounded duty of climate-aware, rights-based development.*

Keywords: environmental governance; political accountability; regulatory enforcement; sustainable development; National Green Tribunal; environmental impact assessment; India

I. Introduction

India is simultaneously one of the fastest-growing major economies and one of the most environmentally stressed. Its cities repeatedly record some of the highest particulate concentrations in the world,[1] its rivers receive large volumes of untreated sewage and effluent, and pressure on forests, coasts and common lands is intensifying with infrastructure and extractive expansion. India also ranked near the bottom of the Yale Environmental Performance Index in 2024.[2]

This is not a story of missing law. Since the 1970s Parliament has enacted statutes on water, air, forests, wildlife, biodiversity and general environmental protection; the Constitution declares environmental protection a State policy and a citizen duty; and the Supreme Court reads a right to a healthy environment into Article 21. The puzzle is why this normative richness has produced so little ecological improvement. The paper's central thesis is that environmental governance fails in India at two linked points: (a) *political accountability*, meaning the capacity of citizens, legislatures and courts to demand justification and impose consequences on those who decide environmental questions; and (b) *regulatory enforcement*, meaning the day-to-day capacity of agencies to monitor, inspect and sanction. Sustainable development is the normative yardstick against which both are measured, but it is too often invoked as a balancing slogan rather than a binding constraint.

The paper proceeds as follows. Part II sets out the conceptual framework. Part III maps the constitutional and statutory architecture. Part IV analyses political

accountability, Part V regulatory enforcement, and Part VI the judicial and tribunal role. Part VII examines the development-environment tension through impact assessment, forests and climate policy. Part VIII proposes reforms and Part IX concludes.

Research questions. (1) How have constitutional and statutory frameworks shaped environmental governance? (2) Why does political accountability remain weak despite strong judicial involvement? (3) What explains persistent enforcement deficits? (4) How should sustainable development be operationalised in decision-making?

Methodology. The study is doctrinal, relying on constitutional provisions, statutes, judicial decisions and policy documents, supplemented by empirical scholarship on regulation in India. Case citations and statutory amendments should be re-verified against official reports before publication, as this area changes quickly.

II. Conceptual Framework

A. Sustainable development

The Brundtland Report defined sustainable development as development that meets present needs without compromising the ability of future generations to meet theirs.[3] The Rio Declaration of 1992 embedded the concept in principles including precaution (Principle 15), the polluter-pays approach (Principle 16) and public participation and access to information and justice (Principle 10).[4] In India the Supreme Court has treated sustainable development, the precautionary principle and the polluter-pays principle as part of national environmental law.[5]

B. Political accountability

Following Bovens, accountability is a relationship in which an actor must explain and justify conduct to a forum, which may pose questions, pass judgment and impose consequences.[6] Applied to the environment, there are four fora: the electorate, legislatures and their committees, courts and tribunals, and civil society and the media. Accountability is thin when information is withheld, when forums lack expertise or standing rules, or when no meaningful sanction follows.

C. Regulatory enforcement

Enforcement covers standard-setting, licensing, monitoring, inspection, penalty and remediation. Empirical work shows that regulation succeeds only when monitoring is credible and sanctions are certain; in India, studies of industrial pollution find that regulators' data and inspections are often unreliable and that auditors paid by the firms they audit report false readings.[7] A well-known study of Indian regulation found that environmental rules have had uneven effects on pollution and health outcomes, with the benefits depending on enforcement quality.[8]

D. Environmental constitutionalism

The paper adopts an environmental constitutionalism lens: the environment is not merely a policy goal but a source of enforceable rights and duties that bind legislative and executive discretion. This lens helps explain why courts can review clearances, and why legislation that dilutes safeguards faces constitutional scrutiny.

III. The Constitutional and Statutory Architecture

A. Constitutional foundations

The original Constitution contained no environmental provision. Following the Stockholm Conference of 1972, the Constitution (Forty-second Amendment) Act 1976 inserted Article 48A, directing the State to protect and improve the environment and safeguard forests and wildlife, and Article 51A(g), making it a fundamental duty of every citizen to protect and improve the natural environment.[9] The same amendment moved forests and the protection of wild animals and birds to the Concurrent List. Article 253 empowers Parliament to legislate to implement international agreements, which is the basis of the Environment (Protection) Act 1986. Articles 243G and 243W with the Eleventh and Twelfth Schedules assign environmental functions to panchayats and municipalities, while the Panchayats (Extension to Scheduled Areas) Act 1996 and the Forest Rights Act 2006 give gram sabhas a role in managing community resources.[10]

The decisive step was judicial. From the mid-1980s the Supreme Court read the right to a wholesome environment into Article 21, beginning with the Doon Valley limestone mining case and the *Subhash Kumar* decision.[11] In 2024 the Court recognised a distinct right against the adverse effects of climate change flowing from Articles 14 and 21.[12]

B. Statutory framework

The principal statutes are the Wildlife (Protection) Act 1972, the Water (Prevention and Control of Pollution) Act 1974, the Forest (Conservation) Act 1980, the Air

(Prevention and Control of Pollution) Act 1981, the Environment (Protection) Act 1986, the Public Liability Insurance Act 1991, the Biological Diversity Act 2002 and the National Green Tribunal Act 2010. The regulatory machinery comprises the Ministry of Environment, Forest and Climate Change (MoEFCC), the Central Pollution Control Board (CPCB), State Pollution Control Boards (SPCBs), and expert appraisal committees for impact assessment. The Environment Impact Assessment (EIA) Notification 2006 made prior environmental clearance a condition for specified projects.[13]

C. A structural critique

Three features of the design matter. First, the framework relies on a command-and-control model in which the executive wields wide discretion over clearances and exemptions, often through notifications rather than primary legislation. Second, the pollution control boards are statutory but not independent: members are nominated by governments, chairs are frequently political or bureaucratic appointees, and boards depend on State funding. Third, enforcement is shared between the Centre and States, producing diffused responsibility, with the Centre setting policy and States carrying out inspection and prosecution with limited capacity.

IV. Political Accountability

A. The electorate and the legislature

Environmental quality rarely decides elections. Costs are diffuse and delayed, benefits of polluting activity are concentrated and immediate, and affected communities, often poor, rural or tribal, have limited electoral leverage. Parliamentary scrutiny is also weak: major environmental changes, such as the overhaul of forest law or the decriminalisation of pollution offences, have been passed through omnibus bills and referred to committees with compressed timelines. The Forest (Conservation) Amendment Act 2023, for instance, narrowed the Act's application by exempting categories of land such as linear projects near borders and security infrastructure, and was challenged before the Supreme Court. In February 2024 the Court directed that the dictionary meaning of 'forest' established in *Godavarman* should continue to govern pending final decision, while directing States to prepare records of forest-like areas.[14]

Similarly, the Jan Vishwas (Amendment of Provisions) Act 2023 amended the Air Act and Environment (Protection) Act among others, replacing imprisonment with monetary penalties for many offences and shifting adjudication to officers.[15] The stated aim is ease of doing business; the accountability cost is that deterrence weakens, and adjudicating officers within the executive replace court prosecution, raising independence concerns.

B. Transparency and participation

Public hearings under the EIA Notification are the principal participatory mechanism, but they are frequently criticised for inadequate notice, language barriers, and sidelined objections. The Draft EIA Notification 2020 proposed exempting categories of projects from hearings and permitting post-facto clearance; it drew several hundred thousand comments and was not finalised.[16] The Supreme Court has held that ex post facto environmental clearance is contrary to the precautionary principle and the rule of law.[17] Participation is also constitutionally framed: in *Orissa Mining Corporation* the Court required gram sabha consent processes for bauxite mining in the Niyamgiri hills, showing that decentralised decision-making can serve as an accountability device.[18]

Access to information remains uneven. Compliance reports, monitoring data and clearance conditions are often not published or are hard to obtain, and real-time data from continuous monitoring is not consistently disclosed. The Right to Information Act 2005 and Section 3 of the NGT Act's procedural openness mitigate but do not solve this.

C. Executive accountability and capture

The appraisal committees that advise on clearance are staffed largely by government-appointed experts, and rejection rates are low. Studies and the Court's own observations have criticised superficial EIA reports prepared by consultants hired by project proponents.[19] In *Lafarge Umiam Mining* the Court emphasised the executive's duty to apply the precautionary principle and explained that sustainable development requires a decision-making framework with objective criteria.[20] The persistent problem is that the same ministry is charged with promoting infrastructure, supplying forest land and regulating environmental harm, creating structural conflicts of interest.

V. Regulatory Enforcement

A. Pollution control boards

SPCBs are meant to be the front line, but they face chronic vacancies, limited technical staff, poor laboratories and dependence on consent fees. Their principal tool, the power to grant or refuse consent to establish and operate, is often exercised formulaically, and closure directions are frequently stayed or reversed by political intervention. The Supreme Court has repeatedly observed the failure of boards to enforce even basic norms, directing action on sewage treatment, industrial effluent and air quality in matters ranging from the Ganga to Delhi's vehicular emissions.[21] The T.S.R. Subramanian High Level Committee (2014) noted weak institutional capacity and recommended a new environmental management cadre and tiered regulators, though its proposals were not implemented as framed.[22]

B. Penalties and deterrence

Administrative penalties are low relative to the cost of compliance, and prosecutions are slow, with low conviction rates. Empirical work on Gujarat's pollution audit scheme showed that when auditors were randomly assigned and paid from a central pool, they reported truthfully, and plants reduced emissions, demonstrating that institutional design changes can improve enforcement.[23] The doctrine of absolute liability for hazardous industries, laid down in *M.C. Mehta v Union of India*, and the polluter-pays principle in *Indian Council for Enviro-Legal Action*, provide strong remedial principles,[24] but they depend on actual assessment and recovery of compensation, which has been inconsistent.

C. Fragmentation and weak monitoring

Responsibility for air quality in Delhi's region illustrates fragmentation, spanning multiple States, local bodies and agencies. Parliament created the Commission for Air Quality Management in the National Capital Region and Adjoining Areas in 2021 to coordinate action, but the pattern of annual seasonal crises persists.[25] The National Clean Air Programme (2019) sets city-level targets for particulate reduction, yet it is a non-statutory programme without binding legal accountability for missed targets.[26]

VI. The Judicial and Tribunal Role

A. Public interest litigation and judicial innovation

The Supreme Court developed a distinctive environmental jurisprudence: absolute liability in *M.C. Mehta*; the precautionary principle and onus on the developer in *Vellore Citizens' Welfare Forum*; the public trust doctrine in *M.C. Mehta v Kamal Nath*; and continuing mandamus in the forests case, *T.N. Godavarman Thirumulpad*, under which the Court supervised forest administration for decades.[27] These decisions filled legislative and administrative gaps and expanded standing. They also invite critique. Rosencranz and Jackson's study of the Delhi pollution litigation argues that the Court's orders, although well-intentioned, exceeded its institutional capacity for implementation and monitoring.[28] Overreach can also shift accountability away from elected branches, which then rely on judicial directions rather than building administrative capacity.

B. The National Green Tribunal

The NGT, established in 2010 following the Law Commission's recommendation for specialised environmental courts, hears civil cases involving substantial environmental questions under the statutes listed in Schedule I and applies sustainable development, precaution and polluter-pays as statutory principles under Section 20.[29] It combines judicial and expert members and has wide remedial powers, including restitution, compensation and its own suo motu initiatives. Scholars have credited it with improving access to environmental justice.[30]

Challenges remain. The Tribunal's expert-member vacancies and the limited number of regional benches reduce access, appeals lie to the Supreme Court under Section 22, compliance with its orders is patchy, and its jurisdiction excludes important statutes such as the Wild Life (Protection) Act and the Indian Forest Act. The Supreme Court has also drawn lines around its jurisdiction and emphasised that environmental clearance decisions must be reasoned and based on a proper assessment of carrying capacity.[31] The result is a three-tier system of regulators, the Tribunal and the Supreme Court, in which courts are often the only real check on executive action.

VII. Sustainable Development: Development, Environment and the Limits of Balancing

A. From balancing to constraint

Indian courts routinely describe sustainable development as a balance between development and environment. *Narmada Bachao Andolan* illustrates the deference approach, accepting that a large dam project could proceed subject to rehabilitation and conditions.[32] A stronger reading,

consistent with Article 21 and intergenerational equity, treats ecological limits as a floor: development decisions must satisfy minimum environmental and rights-based thresholds before benefits are weighed. The Goa mining decision, which required intergenerational equity to inform the cap on extraction, reflects this approach.[33] The Court's treatment of the Goa airport clearance in *Hanuman Laxman Aroskar* is also instructive, because it required full and independent scrutiny of cumulative impacts and recognised the role of the expert committee's reasoning.[34]

B. Environmental impact assessment as accountability tool

EIA is the central instrument for converting sustainable development into administrative practice. For it to operate as accountability, five conditions should hold: independence of assessors from proponents, public disclosure of baseline data and alternatives, meaningful hearings, post-clearance monitoring with public compliance reports, and no regularisation of violations. Current practice meets these conditions only partially, and post-facto clearance mechanisms have been used to regularise past violations, despite judicial disapproval.

C. Forests, communities and livelihoods

Forest governance illustrates the interplay of ecology and rights. The Forest Rights Act 2006 recognises individual and community forest rights and requires gram sabha consent in several contexts, but diversion of forest land for projects is frequently pursued with weak verification of rights settlement. Compensatory afforestation, institutionalised through the Compensatory Afforestation Fund Act 2016, is a financial rather than ecological substitute for the loss of natural forests.[35] A rights-based approach would treat community consent and ecological integrity as preconditions, not procedural hurdles.

D. Climate governance

India's climate policy is built on the National Action Plan on Climate Change (2008), the updated Nationally Determined Contribution submitted in 2022, and the announcement at COP26 of a net-zero target by 2070.[36] The Energy Conservation (Amendment) Act 2022 and the Green Credit Programme (2023) introduced market-based mechanisms. Yet climate policy lacks an overarching framework statute, which means there is no legal duty to report progress to Parliament, no independent expert body such as a climate change committee, and limited justiciability. The 2024 *M.K. Ranjitsinh* decision, which recognised a right against the adverse effects of climate change, creates a constitutional basis for accountability that legislation has yet to implement.[12]

VIII. Recommendations

1. **Statutory independence of regulators.** Amend the Water and Air Acts to provide for merit-based, fixed-tenure appointment of CPCB and SPCB chairs and members through a transparent selection committee, non-removal except for proven misconduct, and assured budgets not dependent on consent fees.
2. **Separate promotion from regulation.** Create an independent national environmental regulator for appraisal, monitoring and enforcement, as the Supreme Court recommended in *Lafarge Umiam Mining*,[20] distinct from the ministry that promotes projects.
3. **Reform EIA.** Mandate independent, randomly assigned accredited assessors paid from a common fund (following the experimental evidence);[23] prohibit post-facto clearance; require disclosure of baseline data; strengthen public hearings with language access and mandatory reasoned responses to objections.
4. **Credible, graded penalties.** Retain monetary penalties where appropriate but preserve criminal liability for serious or repeated violations; create a public register of violations and compensation recovered; implement environmental compensation consistently with polluter-pays.
5. **Legislative accountability.** Require committee scrutiny of significant environmental amendments, annual State of the Environment reports to Parliament and State legislatures, and CAG performance audits of regulators.
6. **Strengthen the NGT.** Fill vacancies promptly, expand benches, extend jurisdiction to forest and wildlife statutes, and establish a compliance monitoring unit.
7. **Climate framework law.** Enact legislation embedding net-zero and adaptation targets, periodic carbon budgets, an independent expert advisory body and reporting duties.
8. **Community rights and participation.** Enforce Forest Rights Act and PESA consent requirements before clearances; adopt an Escazú-type access-to-information model with open data on monitoring.
9. **Operationalise sustainable development.** Adopt statutory thresholds for carrying capacity and

cumulative impacts, so that ecological limits are binding decision criteria rather than factors in an open-ended balancing exercise.

IX. Conclusion

India's environmental problem is one of governance rather than law-making. The constitutional commitment is strong, the statutes are comprehensive, and courts have been creative, but the system suffers from regulators that lack independence and capacity, a clearance regime that privileges speed, a legislature that rarely scrutinises environmental change, and a judiciary pushed into roles better suited to administrators. Recent reforms, including the decriminalisation of offences, the narrowing of forest protection and attempts to regularise violations, risk weakening accountability further. A governance model that takes sustainable development seriously must treat ecological limits and community rights as binding constraints, make regulators independent and transparent, and create credible consequences for non-compliance. Without such changes, India's growth will continue to be financed by environmental debt borne disproportionately by the poor and by future generations.

Footnotes

[1] IQAir, *World Air Quality Report 2023* (IQAir 2024), which ranked India among the most polluted countries by annual PM2.5 concentration.

[2] Block S and others, *2024 Environmental Performance Index* (Yale Center for Environmental Law & Policy 2024).

[3] World Commission on Environment and Development, *Our Common Future* (OUP 1987) ch 2.

[4] Rio Declaration on Environment and Development (1992) UN Doc A/CONF.151/26 (Vol I), Principles 10, 15, 16.

[5] *Vellore Citizens' Welfare Forum v Union of India* (1996) 5 SCC 647.

[6] Mark Bovens, 'Analysing and Assessing Accountability: A Conceptual Framework' (2007) 13 European Law Journal 447.

[7] Esther Duflo, Michael Greenstone, Rohini Pande and Nicholas Ryan, 'Truth-telling by Third-party Auditors and the Response of Polluting Firms: Experimental Evidence from India' (2013) 128 Quarterly Journal of Economics 1499.

[8] Michael Greenstone and Rema Hanna, 'Environmental Regulations, Air and Water Pollution, and Infant Mortality in India' (2014) 104 American Economic Review 3038.

[9] Constitution of India, arts 48A, 51A(g), inserted by the Constitution (Forty-second Amendment) Act 1976.

[10] Constitution of India, arts 243G, 243W, 253; Panchayats (Extension to the Scheduled Areas) Act 1996; Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act 2006.

[11] *Rural Litigation and Entitlement Kendra v State of Uttar Pradesh* (1985) 2 SCC 431; *Subhash Kumar v State of Bihar* (1991) 1 SCC 598.

[12] *M.K. Ranjitsinh v Union of India* 2024 INSC 280.

[13] Environment Impact Assessment Notification, S.O. 1533(E) (14 September 2006), issued under the Environment (Protection) Act 1986.

[14] Forest (Conservation) Amendment Act 2023; *Ashok Kumar Sharma v Union of India*, WP (C) 1164/2023, interim order of 19 February 2024; *T.N. Godavarman Thirumulpad v Union of India* (1997) 2 SCC 267.

[15] Jan Vishwas (Amendment of Provisions) Act 2023; Water (Prevention and Control of Pollution) Amendment Act 2024.

[16] Draft Environment Impact Assessment Notification 2020, MoEFCC.

[17] *Alembic Pharmaceuticals Ltd v Rohit Prajapati* (2020) 17 SCC 157.

[18] *Orissa Mining Corporation Ltd v Ministry of Environment and Forests* (2013) 6 SCC 476.

[19] See Armin Rosencranz and Shyam Divan, *Environmental Law and Policy in India: Cases, Materials and Statutes* (2nd edn, OUP 2001), on appraisal practice and consultants' role.

[20] *Lafarge Umiam Mining Pvt Ltd v Union of India* (2011) 7 SCC 338.

[21] *M.C. Mehta v Union of India* (1987) 4 SCC 463 (Ganga pollution); *M.C. Mehta v Union of India* (1998) 6 SCC 63 (Delhi vehicular pollution).

[22] Report of the High Level Committee on Environmental Laws (chaired by T.S.R. Subramanian) (MoEF 2014).

[23] Duflo and others (n 7).

[24] *M.C. Mehta v Union of India* (1987) 1 SCC 395; *Indian Council for Enviro-Legal Action v Union of India* (1996) 3 SCC 212.

[25] Commission for Air Quality Management in National Capital Region and Adjoining Areas Act 2021.

[26] Ministry of Environment, Forest and Climate Change, *National Clean Air Programme* (2019).

[27] *Vellore Citizens' Welfare Forum* (n 5); *M.C. Mehta v Kamal Nath* (1997) 1 SCC 388; *Godavarman* (n 14).

[28] Armin Rosencranz and Michael Jackson, 'The Delhi Pollution Case: The Supreme Court of India and the Limits of Judicial Power' (2003) 28 Columbia Journal of Environmental Law 223.

[29] National Green Tribunal Act 2010, ss 14, 20; Law Commission of India, *186th Report on Proposal to Constitute Environment Courts* (2003).

[30] Gitanjali Gill, *Environmental Justice in India: The National Green Tribunal* (Routledge 2017).

[31] *Hanuman Laxman Aroskar v Union of India* (2019) 15 SCC 401.

[32] *Narmada Bachao Andolan v Union of India* (2000) 10 SCC 664.

[33] *Common Cause v Union of India* (2017) 9 SCC 499.

[34] *Hanuman Laxman Aroskar* (n 31).

[35] Compensatory Afforestation Fund Act 2016.

[36] Government of India, *India's Updated First Nationally Determined Contribution* (UNFCCC 2022); Prime Minister's statement at COP26, Glasgow (1 November 2021).

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